Salman Sayeed Siddiqui vs State (Nct Of Delhi) on 22 July, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2694/2025
SALMAN SAYEED SIDDIQUI
Through: Mr
Am

versus

STATE (NCT OF DELHI)
Through: Mr
wi
an

CORAM:
HON'BLE MR. JUSTICE GIRISH KATHPALIA
ORDER

% 22.07.2025 [Physical Hearing/Hybrid Hearing (as per request)] CRL.M.A. 20939/2025 & CRL.M.A. 20940/2025 (exemption)

1. Allowed, subject to all just exceptions.

2. The accused/applicant, arrested on 06.04.2024 seeks regular bail in case FIR No. 47/2024 of PS Cyber Police Station, Outer North District for offence under Section 318(4)/3(5) BNS.

3. Learned APP for the State accepts notice and strongly opposes the bail application, referring to the gravity and expanse of the online fraud allegedly committed by a group of persons with whom the accused/applicant is a party. Learned APP has also referred to another case of online fraud registered against the accused/applicant in Mumbai. It is further submitted on behalf of prosecution that the recovery of incriminating articles from the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/07/2025 at 22:37:03 residence of the accused/applicant reflects the expanse of the offence.

4. Learned counsel for the accused/applicant submits that the allegedly cheated amount has been returned by the accused/applicant to the complainant de facto and no material has been collected by the Investigating Officer to connect the accused/applicant with the alleged online fraud. It is also argued that the alleged recovery from the residence of the accused/applicant was witnessed only by police officials and no public person was taken along. Learned counsel for the accused/applicant also contends that the premises from which the incriminating articles were recovered is not the residence of the accused/applicant and no documentary record in the form of ownership or tenancy of the said premises was collected by the Investigating Officer during investigation. As regards the similar case in Mumbai, learned counsel for the accused/applicant submits that he has been granted bail in the said case. Further, it is contended on behalf of the accused/applicant that in the case of

Prabhakar Tewari vs. State of UP, [(2020) 11 SCC 648], relied upon by the Allahabad High Court in the case reported as 2024:AHC:2078, it was observed that pendency of several criminal cases against an accused cannot be a basis for refusal of bail. Learned counsel for the accused/applicant also points out that the maximum punishment for the offences alleged against the accused/applicant is only seven years.

5. Learned prosecutor submits that prior to arrest, notice under Section 35(3) BNSS was served on the accused/applicant to report before the Investigating Officer at 05:45 pm on 05.04.2025, but the accused/applicant did not join the investigation, so he was arrested. In this regard, I examined the investigation file, which would reveal that the notice was served on This is a digitally signed order.

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6. Specific Status Report on the above lines be filed within two weeks.

7. Relist on 19.08.2025.

GIRISH KATHPALIA, J JULY 22, 2025/DR This is a digitally signed order.

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